

[20 GEO. 5.] *Renfrewshire Upper District* [Ch. xlviii.]
(*Eastwood and Mearns*) *Water Order Confirmation*
Act, 1930.



CHAPTER xlviii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Renfrewshire Upper District (Eastwood and Mearns) Water.

A.D. 1930.

[15th April 1930.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by one of His Majesty's Principal Secretaries of State under the provisions of the Private Legislation Procedure (Scotland) Act 1899 as read with the Secretaries of State Act 1926 and it is requisite that the said Order should be confirmed by Parliament :

62 & 63 Vict.
c. 47.
16 & 17
Geo. 5. c. 18.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
Schedule.

2. This Act may be cited as the Renfrewshire Upper District (Eastwood and Mearns) Water Order Confirmation Act 1930.

Short title.

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SCHEDULE.

RENFREWSHIRE UPPER DISTRICT (EASTWOOD
AND MEARN'S) WATER,

Provisional Order to revive the powers and extend the time for enabling the County Council of the County of Renfrew to construct the Lochcraig Reservoir authorised by the Renfrewshire Upper District (Eastwood and Mearns) Water Act 1907 and for other purposes.

WHEREAS previously to the coming into operation of the Local Government (Scotland) Act 1929 the County Council of the county of Renfrew (hereinafter called "the County Council") were the local authority for the said county in the execution of the Public Health (Scotland) Acts 1897 to 1907 (hereinafter referred to as "the Public Health Acts") with respect to acquiring and holding land rating and borrowing and the district committee of the first or upper district of that county (hereinafter called "the district committee") were the local authority for the execution within the said first or upper district of the Public Health Acts except with respect to acquiring or holding land rating and borrowing :

And whereas by the Local Government (Scotland) Act 1929 all the functions of the district committee are transferred to the County Council as on the sixteenth day of May one thousand nine hundred and thirty and subject to the provisions of that Act the County Council as on and from that date are the local authority under the Public Health Acts for all purposes within the said first or upper district :

And whereas by the Renfrewshire Upper District (Eastwood and Mearns) Water Act 1907 (hereinafter called "the Act of 1907") the district committee were authorised on lands to be acquired and which were acquired by the County Council to construct certain waterworks including a reservoir on the Bennan Loch and a reservoir on the Lochcraig Burn and by that Act

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the powers to construct such works were limited and expired in the year one thousand nine hundred and seventeen : A.D. 1930

And whereas the district committee were advised to construct the works by stages and completed the Bennan Loch reservoir within the time limited by the Act of 1907 and are supplying water therefrom but the district committee did not at the same time construct the Lochcraig reservoir :

And whereas owing to the intervention of the war period the district committee were advised that owing to the restriction on capital expenditure during the war and inflated costs thereafter and the arrested development of the district consequent upon the war the construction of the Lochcraig reservoir at that time was not advisable in the public interest and the powers for the construction of the same were allowed to lapse :

And whereas subsequently to that period there has been a further growth in the population of the district and it is expedient in the interest of the inhabitants of the district that the construction of the Lochcraig reservoir should be undertaken and the County Council with a view to providing relief from unemployment are desirous of proceeding with such works forthwith :

And whereas at the request and with the concurrence of the district committee the County Council have resolved to apply for the revival of the powers to construct the Lochcraig reservoir authorised by the Act of 1907 on the lands which the County Council have acquired for that purpose under the Act of 1907 :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

1.—(1) This Order may be cited for all purposes as the Renfrewshire Upper District (Eastwood and Mearns) Water Order 1930.

Short title
and cita-
tion.

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(2) The Renfrewshire Upper District (Eastwood and Mearns) Water Act 1907 and this Order may be cited together as the Renfrewshire Upper District (Eastwood and Mearns) Water Acts 1907 and 1930.

Revival of
powers for
completion
of reservoir
under Act
of 1907.

2. The powers granted to the district committee for the construction and completion of the reservoir (Work No. 4) the embankment (Work No. 5) and the conduit or line of pipes (Work No. 6) authorised by the Renfrewshire Upper District (Eastwood and Mearns) Water Act 1907 are hereby revived and extended and may be exercised by the County Council in accordance with the provisions of the said Act at any time within the period between the commencement of this Order and the first day of October one thousand nine hundred and forty but shall cease on that date and the section of the Act of 1907 which relates to the period for the completion of the said reservoir and works shall be read and construed as if the period for such completion referred to in that section did not expire until the date herein mentioned and the provisions of the Act of 1907 shall with the substitution of the County Council for the district committee and any other necessary modifications have effect accordingly.

Costs of
Order.

3. The costs charges and expenses of and incident to the preparing for obtaining and making of this Order and the confirmation thereof by Parliament or otherwise in relation thereto shall be paid by the County Council out of the consolidated rate and the water assessments leviable within the Eastwood and Mearns Water District in such proportion as the County Council may determine.

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